



POLICE DEPARTMENT CITY OF NEW YORK

August 12, 2016

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Ernesto Marks
Tax Registry No. 946759
Queens Court Section
Disciplinary Case No. 2015-13905

Charges and Specifications:

1. Said Police Officer Ernesto Marks, assigned to the 66th Precinct, while off-duty, in the confines of Kings County, on or about July 2, 2015, did wrongfully engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer Marks was involved in a verbal and physical altercation with Person A.
P.G. 203-10, page 1, Paragraph 5 – PROHIBITED CONTACT-GENERAL

REGULATIONS

2. Said Police Officer Ernesto Marks, assigned to the 66th Precinct, while off-duty, in the confines of Kings County, on or about July 2, 2015, did wrongfully engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer Marks removed Person A's cell phone from her possession as she attempted to communicate with 911 operators and request police assistance.

P.G. 203-10, page 1, Paragraph 5 – PROHIBITED CONTACT-GENERAL
REGULATIONS

3. Said Police Officer Ernesto Marks, assigned to the 66th Precinct, while off-duty, in the confines of Kings County, on or about July 2, 2015, did wrongfully engage in conduct prejudicial to the good order, efficiency or discipline of the Department, to wit: said Police Officer Marks patronized an unlawful location identified as [REDACTED] in the confines of the 67th Precinct. (*As Amended*)

P.G. 203-10, page 1, Paragraph 5 – PROHIBITED CONTACT-GENERAL
REGULATIONS

Appearances:

For the Department: Javier R. Seymore, Esq.
Assistant Department Advocate
Department Advocate's Office
One Police Plaza, Room 402
New York, New York 10038

For the Respondent: John Tynan, Esq.
Worth, Longworth & London, LLP
111 John Street-Suite 640
New York, New York 10038

Hearing Dates:
May 16, 2016 and June 14, 2016

Decision:
Respondent is found Guilty of Specification Nos. 1 and 2 and Not Guilty of Specification No. 3.

Trial Commissioner:
ADCT Robert W. Vinal

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on May 16, 2016 and June 14, 2016. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The Assistant Department Advocate called Sergeant Steven Silverstein as his only witness. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

After reviewing the evidence presented at the hearing, and assessing the credibility of the witnesses, I find Respondent Guilty of Specification Nos. 1 and 2 and Not Guilty of Specification No. 3 of the charged misconduct.

FINDINGS AND ANALYSIS

It is not disputed that on July 1, 2015, Respondent, who was assigned to the 66 Precinct, performed a tour of duty from 1500 hours until 2335 hours. At around midnight, he and Person A, who he had been dating for a short time, got into his black 2014 Ford Explorer and drove around Brooklyn. He stopped and parked near the [REDACTED]

██████████ which is within the confines of the 67 Precinct. He and Person A entered ██████████
██████████ Respondent did not drink any alcohol because he was not feeling well, but Person A drank
liquor. They left ██████████ at about 0300 hours on July 2, 2015 and reentered Respondent's
car. While they were driving to his residence at ██████████, he and Person A
began to argue.

Since Person A did not appear to testify at this trial, the Assistant Department Advocate
(the Advocate) offered in evidence the transcript of a recorded interview of Person A that was
conducted at 1025 hours on July 2, 2015 by Sergeant Steven Silverstein, who was assigned to
██████████ [Department's Exhibit (DX) 5] During this interview, Person
A stated that she worked at Mr. Wedge, "a strip club" in the Bronx. After work she took a cab to
Respondent's residence and he later drove her to ██████████ Person A stated that although she
had never previously been to ██████████, Respondent told her that he had been there before.

After they left ██████████ and Respondent was driving her to his residence, he began
telling her that she was an alcoholic. She demanded that he let her get out of the car, but he
refused to do so. When she tried to get out, he leaned across her and held the front passenger
door closed while he was driving. Person A stated that because he would not let her get out of
the car, she "went crazy" and began "screaming" and kicking the car's front window so hard that
it cracked the windshield. Respondent put her in a headlock and pulled her hair.

She took out her cell phone, pressed 911, and as an operator was answering her call,
Respondent snatched the phone out of her hand and "hung up." When Respondent stopped his
car near his residence on ██████████, he grabbed her, pulled her, and "dragged" her out of
his car. She then repeatedly told him that she needed her phone which he had kept.

The Advocate also offered in evidence a Domestic Incident Report (DIR) and an Aided Report (DX 2) that were prepared by responding Police Officer James (DX 1). In the "Results of investigation" section of the DIR, Officer James wrote that Person A told him that Respondent had "put her in a head-lock" and "dragged her." In the "Statement of Allegations/Supporting Deposition" section of the DIR Person A hand-wrote: "We went out got into a agurment [sic]. He put me in a head lock drag me and held me until I couldn't breath. I have pain in my left arm. He pulled my braids. I have pain behind my neck from the head lock he put me in. My nails are bleeding and feet are hurting. He took my phone so I wouldn't call the cops. He told me I wasn't getting my money bag. He push me to the ground to [sic] many [sic] times. He held me in the car so I kicked his window in after I asked him so many time [sic] to get out the car." On the Aided Report Officer James wrote: "Aided was dragged and placed in headlock."

The Advocate also offered in evidence the transcript of the recording of the cell phone call that Person A made to 911 on July 2, 2015 (DX 8). After the 911 operator asked Person A, "Where is the emergency?" Person A told the operator, "Yeah, there's this nigga, he's a cop and he's..." The call ends and the operator is heard asking, "Hello?"

The Advocate further offered in evidence medical records regarding the treatment Person A received on July 2, 2015, at [REDACTED] state that Person A suffered "Abrasions, Multiple Sites." (DX 3)

The Advocate also offered in evidence the transcript of a recorded call to 911 that Person B placed on July 2, 2015, (DX 7) and the transcript of the recorded interview of Person B that was conducted that same day by Sergeant Silverstein (DX 6). In her call to 911, Person B stated that she was looking out her apartment window at the intersection of [REDACTED] where a male and a female who had exited a black-colored car were

“arguing about hitting each other in the car” and “she’s drunk” and “the guy is dragging the girl away” and “she’s screaming ‘Help! Help!’” During her interview, Person B stated that the woman “kept asking for her phone” and the man “never said, ‘I don’t have it.’”

Lastly, the Advocate offered in evidence a list of Integrity Monitoring Locations located within the 67 Precinct that was prepared by the 67 Precinct’s Integrity Control Officer (ICO) which designates [REDACTED] as an Unlawful Location (DX 4).

Sergeant Steven Silverstein testified at this trial that when he interviewed Person A at 1025 hours on July 2, 2015, he observed an abrasion on Person A’s lower lip.

Respondent’s testimony at this trial will be discussed within the Analysis section of this decision.

Analysis

Under Specification No. 1, Respondent is charged with having wrongfully engaged in conduct prejudicial to the good order, efficiency or discipline of the Department by becoming involved in a verbal and physical altercation with Person A. Respondent asserted that the only physicality he engaged in was inside his car when he tried to protect himself when he was driving after Person A attacked him by hitting him and trying to kick him, and that he only put his hand on the back of Person A’s head, pushed it down and tried to hold it down. He asserted that he never touched Person A at all after he and Person A got out of the car. (Tr. p. 78-82)

The “Statement of Allegations/Supporting Deposition” that Person A hand wrote on the DIR on July 2, 2015 (DX 1) and the transcript of the interview of her that was conducted that same day (DX 5) were admitted into evidence as hearsay. Hearsay is admissible at a Department disciplinary trial and may form the sole basis for making findings of fact.¹ Where the hearsay

¹ RCNY Title 38, 15-04(e)(1).

statement of a complainant is offered into evidence at a Department disciplinary trial it can constitute substantial evidence which is sufficient to support a guilty finding if it is found to be reliable, credible and probative of the issues to be determined at the trial.² The reliability and credibility of a hearsay allegation is enhanced where the hearsay is corroborated by independent evidence.³

Here, Person A's claim at her interview that she was "dragged" out of the car by Respondent (DX 5 p. 16), and her claim to Police Officer James that she was "dragged" by Respondent, which he wrote on the DIR (DX 1) and on his Aided Report (DX 2), is directly corroborated by Person B's statement to the 911 operator that "the guy is dragging the girl away." (DX 7 p. 2) It is clear that the man and the woman that Person B observed from her window were Respondent and Person A. Since Person B did not know either Person A or Respondent, she was an independent, unbiased witness to their interaction on the street and, thus, her contemporaneous description to the 911 operator of what she was seeing has significant probative value. Finally, Sergeant Silverstein's testimony that he observed an abrasion on Person A's lower lip and the hospital records which state that Person A suffered abrasions (DX 3) are more consistent with Person A's version of their physical interaction than Respondent's version.

Therefore, Respondent is found Guilty of Specification No. 1.

Under Specification No. 2, Respondent is charged with having wrongfully engaged in conduct prejudicial to the good order, efficiency or discipline of the Department by removing Person A's cell phone from her possession as she attempted to communicate with 911 and request police assistance. Respondent confirmed that Person A made a call on her cell phone while they were still inside his car but he denied knowing who she had called and he denied that he had

² *Saunders v. City of New York*, 273 AD2d 103 (1st Dep't 2012), lv. to appeal denied, 95 NY2d 766 (2000).

³ See *Pulci v. Kelly*, 2 AD3d 124 (1st Dep't 2003); *Grossman v. Kralik*, 217 AD2d 625 (2nd Dep't 1995).

grabbed Person A's cell phone out of her hand and terminated the call. He asserted that Person A had ended her phone call by throwing the phone at him and that he handed the phone back to Person A immediately after they exited his car and told her, "Here, take your phone." (Tr. p. 71-72)

Person A's claim that Respondent snatched her cell phone out of her hand just as she began speaking to a 911 operator (DX 5 p. 14-15) is supported by the transcript of her 911 call (DX 8). The fact that Person A's conversation with the operator abruptly ends immediately after she says to the operator "he's a cop and he's ..." is more consistent with her claim that Respondent grabbed her cell phone and pulled it out of her hand than it is with his claim that she threw it at him.

Moreover, Person A's claim that while they were outside the car she repeatedly told Respondent that she needed her phone (DX 5 p. 17) is corroborated by Person B's statement. Person B stated that the woman "kept asking for her phone" and that the man never told her that he did not have her phone. (DX 6 p. 5 and p. 13-14). Person B's statement refutes Respondent's claim that he handed Person A's phone back to her right after they exited the car and told her, "Here, take your phone."

Therefore, Respondent is found Guilty of Specification No. 2.

Finally, under Specification No. 3, Respondent is charged with having engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that on July 2, 2015, he "patronized an unlawful location identified as [REDACTED] in the confines of the 67 Precinct." It is not disputed that Respondent patronized [REDACTED] on July 2, 2015. Respondent testified that he was not aware that [REDACTED] had been designated as an Unlawful Location. Thus, the question presented is whether the Advocate met his burden of presenting evidence which proved that Respondent had been placed on notice that he was not permitted to patronize [REDACTED] because it had been designated an Unlawful Location.

The list of Integrity Monitoring Locations within the 67 Precinct that was prepared by the 67 Precinct's Integrity Control Officer pursuant to Patrol Guide Procedure No. 203-21, Integrity Monitoring File ("the 67 List") designates the [REDACTED] as an Unlawful Location (DX 4). However, on July 2, 2015, Respondent was assigned to the 66 Precinct and he has never been assigned to the 67 Precinct. The Advocate offered no testimony or other evidence to establish that the 67 List was forwarded to the 66 Precinct, or was placed in the 66 Precinct's Integrity Monitoring File, or was posted within the 66 Precinct. Thus, the Advocate presented no evidence that Respondent had actual or constructive notice that he was not allowed to patronize the [REDACTED].

A provision of Patrol Guide Procedure No. 203-21 makes it clear that the question of whether a member of the service should have been aware of the unlawful status of a location is critical to the determination of whether the member's presence inside the location constitutes misconduct. The provision mandates that:

If a member of the service becomes involved in an incident in an Unlawful Location, outside of his/her command, and upon investigation it is discovered that the location has been previously deemed unlawful, and is still carried as such in the command's Integrity Monitoring File, the commanding officer/duty captain will determine whether or not the member involved should have been aware of the unlawful status of the location in question.⁴

Thus, even though I credit Person A's claim that Respondent told her that he had been to [REDACTED] on occasions prior to July 2, 2015, rather than Respondent's claim that July 2, 2015, was the first time he had ever been there, the Advocate did not sufficiently prove that Respondent should have been aware that the [REDACTED] was an Unlawful Location.

Therefore, Respondent is found Not Guilty of Specification No. 3.

⁴ Patrol Guide Procedure No. 203-21, page 4, Additional Data, Unlawful Locations.

PENALTY RECOMMENDATION

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 N.Y.2d 222 (1974). Respondent was appointed to the Department on July 8, 2008. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached Confidential Memorandum.

The Advocate recommended that Respondent forfeit the 32 days he served on pre-trial suspension as a penalty. The Advocate did not cite any previous disciplinary decisions to support this penalty recommendation.

Penalties consisting of the loss of 25-31 days have consistently been imposed where a member has engaged in an off-duty domestic physical altercation and has also taken possession of a cell phone to prevent or interrupt a call to 911.

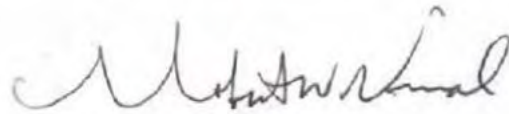
In Case No. [REDACTED], a ten-year police officer forfeited the 30 days he had served on pre-trial suspension as a penalty for engaging in a physical altercation [REDACTED] while off duty, preventing her from calling 911 by taking her cellphone, and other misconduct.

In Case No. [REDACTED] an 18-year officer forfeited 25 vacation days as a penalty for engaging in a physical altercation [REDACTED] while off duty, grabbing a person's cell phone as the person was calling 911, and other misconduct.

Finally, in Case Nos. [REDACTED], a three-year officer forfeited 31 pretrial suspension days for becoming involved in a physical altercation [REDACTED], grabbing [REDACTED] cell phone out of her hand as she tried to call 911, and other misconduct.

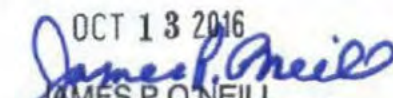
Respondent was suspended from July 2, 2015 until August 2, 2015, when he was placed on modified assignment. It is recommended that Respondent forfeit the 32 days he served on pre-trial suspension as a penalty.

Respectfully submitted,



Robert W. Vinal
Assistant Deputy Commissioner Trials

APPROVED

OCT 13 2016

JAMES P. O'NEILL
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER ERNESTO MARKS
TAX REGISTRY NO. 946759
DISCIPLINARY CASE NO. 2015-13905

Respondent received an overall rating of 3.5 on his 2015 annual evaluation, 3.5 on his 2014 evaluation, and 3.0 on his 2013 evaluation. He has been awarded one Meritorious Police Duty medal. [REDACTED]

In 2011, he forfeited ten vacation days as a penalty after he pleaded guilty to having been out of his residence without permission while he was on sick report on July 6, 2009.

On September 9, 2015, he was placed in Level 2 discipline monitoring based on his overall record. This monitoring is continuing.

For your consideration.

Robert W. Vinal
Assistant Deputy Commissioner Trials